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TAB 4



Board of Education Report

File #: Rep-103-24/25, Version: 1

Define and Approve Two Accessibility Enhancement Projects and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

November 19, 2024

Facilities Services Division and Division of Special Education

Action Proposed:

Define and approve two accessibility enhancement projects at Coliseum Street Elementary School and Mayall Academy of Arts & Technology Magnet Elementary School, as described in Exhibit A, to support the implementation of the Board of Education (Board) approved Self-Evaluation and Transition Plan (Transition Plan) under the Americans with Disabilities Act (ADA) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The total combined budget for the two proposed projects is \$13,816,850.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects including budget modifications and the purchase of equipment and materials.

Background:

On October 10, 2017, the Board approved the Transition Plan under the Americans with Disabilities Act to further Los Angeles Unified efforts to comply with ADA Title II program accessibility requirements. The Transition Plan outlined Los Angeles Unified's proposed approach to providing program accessibility, which considers the characteristics of Los Angeles Unified, student population, variety of educational programs, as well as the existing level of accessibility. The Transition Plan established a specific approach and goals for achieving program accessibility within eight years through facility modifications and operational means.

Under the Transition Plan, each school is assigned to one of three levels of accessibility (Category One, Two, or Three) based on assessments of more than two dozen criteria including school programs, matriculation options, feeder pattern, geographic location, known (or anticipated/matriculating) population of students with disabilities or parents/guardians with disabilities, type of instructional model, and public input. The assigned category reflects the level of accessibility the site needs to meet. Schools that do not yet meet the criteria for their assigned category will undergo accessibility improvements and are prioritized for project development based on the criteria mentioned above. The three categories of accessibility are as follows:

- Category One: These are "key" schools and will have the highest level of access, generally in accordance with applicable physical accessibility standards. Category 1A will provide "full accessibility" for the schools that were built to new construction standards, while Category 1B will provide "high accessibility" for schools that have been altered with some limited exceptions.
- Category Two: These will be "program-accessible" schools. The core spaces and features of these schools would be made accessible; in addition, program accessibility would be provided to all programs and activities at the school.

- Category Three: These schools will have “core access,” which means that the core spaces (certain common spaces) would be made accessible, to ensure a basic level of access to the building. These include, for example, parking, the main entrance and main office, assembly areas, and some restrooms.

The two school sites for which an accessibility enhancement project is being proposed do not yet meet their assigned category/level of accessibility and thus require facilities improvements. The scope, schedule, and budget for each proposed project reflects the existing known conditions at each school site and the improvements necessary to meet each schools’ assigned category of accessibility. The conditions of significance include acreage, topography, square footage, existence of multi-story buildings, age of buildings, as well as the number of schools, programs, features, and activities at a school site.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens’ Oversight Committee (BOC) at its meeting on November 7, 2024, as referenced in Exhibit C. The presentation that was provided is included as Exhibit D. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified’s ability to successfully complete the Facilities SEP.

Expected Outcomes:

Define and approve two accessibility enhancement projects, as detailed in Exhibit A, and adopt the proposed amendment to the Facilities SEP to incorporate therein. Approval will authorize staff to proceed with the implementation of the proposed projects.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to immediately begin designing the proposed projects at two school sites.

If the Board does not approve the proposal, staff will be unable to initiate the two proposed accessibility enhancement projects, which are necessary to achieve program accessibility as outlined in the Transition Plan.

Policy Implications:

The proposal furthers implementation of the Transition Plan. As outlined in the Transition Plan, at Category One, Two and Three schools, an appropriate number of classrooms will be identified to serve as accessible learning spaces, some of which may require facility improvements to meet the criteria for their assigned accessibility category. Additionally, the proposed action will advance the Los Angeles Unified 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by implementing accessibility improvements at schools.

Any potential future room changes by Administrators or Principals will be reviewed by the Division of Special Education, the ADA Compliance Administrator, and the Facilities Services Division to ensure that new accessibility problems are not created as a result of the classroom moves. This will be done in close coordination with school staff to ensure disruptions are minimized.

Budget Impact:

The total combined budget, as currently estimated, for the two proposed projects is \$13,816,850. The proposed projects will be funded with Bond Program funds earmarked specifically for ADA Transition Plan Implementation.

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Each project budget was prepared based on the current information known, and assumptions about the proposed project scopes, site conditions, and market conditions. Individual project budgets will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of each proposed project.

Student Impact:

The two proposed projects will remove barriers to program accessibility for approximately 690 current and future students and qualified members of the community and ensure that all have an equal opportunity to access programs and activities at each campus.

Equity Impact:

Facilities works to coordinate Los Angeles Unified efforts under the ADA to ensure programs are accessible by students, parents, and community members with disabilities.

Issues and Analysis:

Both Title II of the ADA and Section 504 of the Rehabilitation Act of 1973 impose broad-reaching prohibitions against discrimination on the basis of disability. As to facilities, a key requirement for both the ADA and Section 504 is program accessibility: programs, benefits, services, and activities provided by public entities must be accessible to people with disabilities. This means that a qualified individual with a disability is not to be discriminated against because the entity's facilities are inaccessible; however, this does not necessarily mean that all facilities must be accessible. While both laws do require that newly constructed and altered facilities meet stringent accessibility requirements, they do not require that all existing facilities meet those standards, so long as the programs and services provided in those facilities are made accessible to people with disabilities. A program or service can be made accessible by relocating it, providing it in a different manner, or utilizing some other strategy to ensure that people with disabilities have an equal opportunity to benefit from the entity's programs and activities. These proposed projects are in alignment with Los Angeles Unified's implementation of the Board-approved Self-Evaluation and Transition Plan.

The Office of Environmental Health and Safety (OEHS) will evaluate the proposed projects in accordance with the California Environmental Quality Act (CEQA).

Attachments:

Exhibit A - Two Accessibility Enhancement Projects

Exhibit B - Student Eligibility by Program at Two Schools

Exhibit C - BOC Resolution

Exhibit D - BOC Presentation

Informatives:

None

Submitted:

10/17/24

RESPECTFULLY SUBMITTED,**APPROVED BY:**

ALBERTO M. CARVALHO
Superintendent



PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:**APPROVED BY:**

DEVORA NAVERA REED
General Counsel



KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

☒ Approved as to form.

REVIEWED BY:**PRESENTED BY:**

NOLBERTO DELGADILLO
Deputy Chief Financial Officer



Issam Dahdul
Director of Facilities
Planning & Development
Facilities Services Division

☒ Approved as to budget impact statement.



LOS ANGELES UNIFIED SCHOOL DISTRICT

Board of Education Report

Exhibit A Two Accessibility Enhancement Projects

1. Coliseum Street Elementary School Accessibility Enhancement Project

Region South, Board District 1 (Dr. George J. McKenna III)

Project Background and Scope: The Coliseum Street Elementary School site spans 5.17 acres and is comprised of a Universal Transitional Kindergarten-5 elementary program and a California State preschool program. The building area is approximately 40,400 square feet and includes six single-story permanent buildings, one multi-story permanent building and eight relocatable buildings. The buildings were constructed between 1947 and 2013. As of the 2023-2024 Electronic Capacity Assessment Review (E-CAR), the school serves approximately 220 students and currently 58 have been identified as having a disability.

The site has been assigned a Category Two accessibility level. In order to meet the criteria for Category Two, various upgrades to nine buildings are required including corrections, installation, or replacement of: 31 paths of travel, six restrooms, four drinking fountains, three concrete ramps, three metal ramps, one new stage lift, and other accessibility upgrades such as door hardware, playground components/matting, railings, and any other required improvements or mitigations to ensure compliance with local, state and/or federal facilities requirements.

Project Budget: \$7,481,198

Project Schedule: Construction is anticipated to begin in Q3-2027 and be completed in Q1-2029.

2. Mayall Academy of Arts & Technology Magnet ES Accessibility Enhancement Project

Region North, Board District 3 (Scott M. Schmerelson)

Project Background and Scope: The Mayall Academy of Arts & Technology Magnet ES site spans 6.62 acres and is comprised of a K-5 magnet program. The building area is approximately 39,700 square feet and includes eight single-story permanent buildings and two multi-story permanent buildings. The permanent buildings were constructed between 1953 and 1998. As of the 2023-2024 E-CAR, the school serves approximately 470 students and currently 37 have been identified as having a disability.

The site has been assigned a Category Two accessibility level. In order to meet the criteria for Category Two, various upgrades to three buildings are required including corrections, installation, or replacement of: 15 paths of travel, six restrooms, four drinking fountains, one concrete ramp, two metal ramps, three assembly seating areas, one playground matting area, and other accessibility upgrades such as door hardware, playground components/matting, railings, and any other required improvements or mitigations to ensure compliance with local, state and/or federal facilities requirements.

Project Budget: \$6,335,652

Project Schedule: Construction is anticipated to begin in Q3-2027 and be completed in Q1-2029.

Student Eligibility by Program at Two Schools

Disability Category	Coliseum Street ES	Mayall Academy of Arts & Technology Magnet ES
Autism (AUD)	44	<11
Deaf-Blindness (DF)	0	0
Deferred Eligibility (Preschool)	0	0
Emotional Disturbance (ED)	0	0
Hard of Hearing (HH)	0	<11
Intellectual Disability (ID)	<11	0
Multiple Disabilities – Hearing (MDH)	0	0
Multiple Disabilities – Orthopedic (MDO)	0	0
Multiple Disabilities – Vision (MDV)	0	0
Orthopedic Impairment (OI)	0	0
Other Health Impairment (OHI)	0	<11
Specific Learning Disability (SLD)	<11	11
Speech or Language Impairment (SLI)	12	<11
Visual Impairment (VI)	0	<11
Grand Total	58	37

To ensure confidentiality of individual student results and compliance with Los Angeles Unified policy and State guidelines, data is suppressed if the number of students included in calculations is less than 11.

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

D. Michael Hamner, FAIA, Chair
American Institute of Architects
Robert Campbell, Vice-Chair
L.A. Co. Auditor-Controller's Office
Dr. Samantha Rowles, Secretary
LAUSD Student Parent
Patrick MacFarlane, Executive Committee
Early Education Coalition
Scott Pansky, Executive Committee
L.A. Area Chamber of Commerce

Joseph P. Buchman – Legal Counsel
Burke, Williams & Sorensen, LLP
Lori Raineri and Keith Weaver – Oversight Consultants
Government Financial Services Joint Powers Authority

Neelura Bell
CA Charter School Association
Sandra Betts
CA Tax Reform Assn.
Chad Boggio
L.A. Co. Federation of Labor AFL-CIO
Aleigh Lewis
L.A. City Controller's Office
Jennifer McDowell
L.A. City Mayor's Office
Brian Mello
Assoc. General Contractors of CA
Santa Ramirez
Tenth District PTSA

William O. Ross IV
31st District PTSA
Dr. Bevin Ashenmiller (Alternate)
Tenth District PTSA
Ashley Kaiser (Alternate)
Assoc. General Contractors of CA
Connie Yee (Alternate)
L.A. Co. Auditor-Controller's Office
Vacant
Senior Citizens' Organization
Vacant
LAUSD Student Parent

Timothy Popejoy
Bond Oversight Administrator
Perla Zitle
Bond Oversight Coordinator

RESOLUTION 2024-36**BOARD REPORT 103-23/24**

**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE TWO
ACCESSIBILITY ENHANCEMENT PROJECTS AND AMEND THE FACILITIES SERVICES
DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, Los Angeles Unified School District (District) Staff proposes that the Board of Education (Board) define and approve two accessibility enhancement projects at Coliseum Street Elementary School and Mayall Academy of Arts & Technology Magnet Elementary School, to support the implementation of the Board approved Self-Evaluation and Transition Plan (Transition Plan) under the Americans with Disabilities Act (ADA), and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) accordingly; and

WHEREAS, District Staff also requests that the Board authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects including budget modifications and the purchase of equipment and materials; and

WHEREAS, Under the Transition Plan, each school is assigned to one of three levels of accessibility (Category One, Two, or Three) based on assessments of more than two dozen criteria, including school programs, matriculation options, feeder pattern, geographic location, known (or anticipated/matriculating) population of students with disabilities or parents/guardians with disabilities, type of instructional model, and public input. The assigned category reflects the level of accessibility the site needs to meet. Schools that do not yet meet the criteria for their assigned category will undergo accessibility improvements and are prioritized for project development based on the criteria mentioned above. The three categories of accessibility are as follows:

- Category One: These are “key” schools and will have the highest level of access, generally in accordance with applicable physical accessibility standards. Category 1A will provide “full accessibility” for the schools that were built to new construction standards, while Category 1B will provide “high accessibility” for schools that have been altered with some limited exceptions.
- Category Two: These will be “program-accessible” schools. The core spaces and features of these schools would be made accessible; in addition, program accessibility would be provided to all programs and activities at the school.

RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE TWO ACCESSIBILITY ENHANCEMENT PROJECTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN

- Category Three: These schools will have “core access,” which means that the core spaces (certain common spaces) would be made accessible, to ensure a basic level of access to the building. These include, for example, parking, the main entrance and main office, assembly areas, and some restrooms.

WHEREAS, The two school sites for which an accessibility enhancement project is being proposed do not yet meet their assigned category/level of accessibility and thus require facilities improvements. The scope, schedule, and budget for each proposed project reflects the existing known conditions at each school site and the improvements necessary to meet each schools’ assigned category of accessibility. The conditions of significance include acreage, topography, square footage, existence of multi-story buildings, age of buildings, as well as the number of schools, programs, features, and activities at a school site; and

WHEREAS, The total combined budget, as currently estimated, for the two proposed projects is \$13,816,850 and will be funded by Bond Program funds earmarked specifically for ADA Transition Plan Implementation; and

WHEREAS, the District Office of General Counsel has reviewed the proposed Projects and determined that they may proceed to the Bond Oversight Committee for its consideration for recommendation to the Board of Education; and

WHEREAS, District staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified’s ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Bond Citizens' Oversight Committee recommends that the Board define and approve two accessibility enhancement projects and amend the Facilities SEP, accordingly, as described in Board Report No. 103-24/25, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee’s website.
3. Los Angeles Unified is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District

ADOPTED on November 7, 2024, by the following vote:

AYES: 9

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 4

/Robert Campbell/

Robert Campbell
Vice-Chair

/Samantha Rowles/

Dr. Samantha Rowles
Secretary



Two Accessibility Enhancement Projects

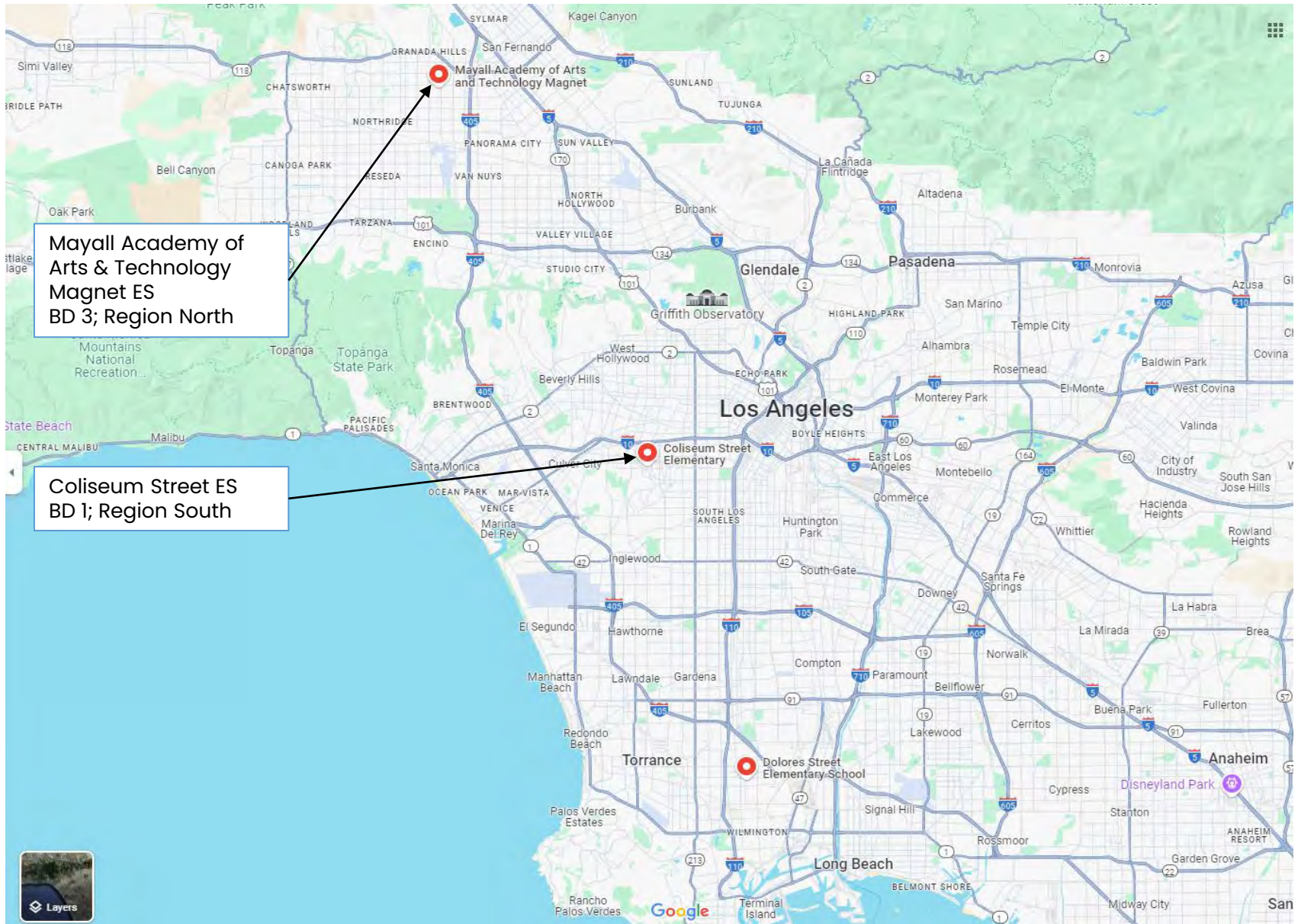


- October 10, 2017: Board approved the Self-Evaluation and Transition Plan (Transition Plan) under the Americans with Disabilities Act (ADA) to further Los Angeles Unified efforts to comply with ADA Title II program accessibility requirements
- Under the Transition Plan each school is assigned to one of three levels of accessibility, and schools requiring accessibility improvements are prioritized for project development
- Accessibility level assignments and project prioritization is based on an assessment of more than two dozen criteria including:
 - o School programs
 - o Matriculation options
 - o Feeder Pattern
 - o Geographic location
 - o Known (or anticipated/matriculating) population of students with disabilities or parents/guardians with disabilities
 - o Type of instructional model
 - o Public input

- Levels of Accessibility
 - Category One: Schools with highest level access
 - o Generally, in accordance with applicable physical accessibility standards
 - o 1A: “full accessibility” schools -- built to new construction standards
 - o 1B: “high accessibility” schools -- altered with some limited exceptions
 - Category Two: “Program-Accessible” schools
 - o Core spaces and features will be accessible
 - o Program accessibility will be provided to all programs and activities at the school
 - Category Three: “Core Access” schools
 - o A basic level of access will be provided for core buildings and certain common spaces
- Accessibility enhancement projects are developed only for those schools that do not yet meet their assigned category/level of accessibility and thus require facilities improvements

Project Location Map

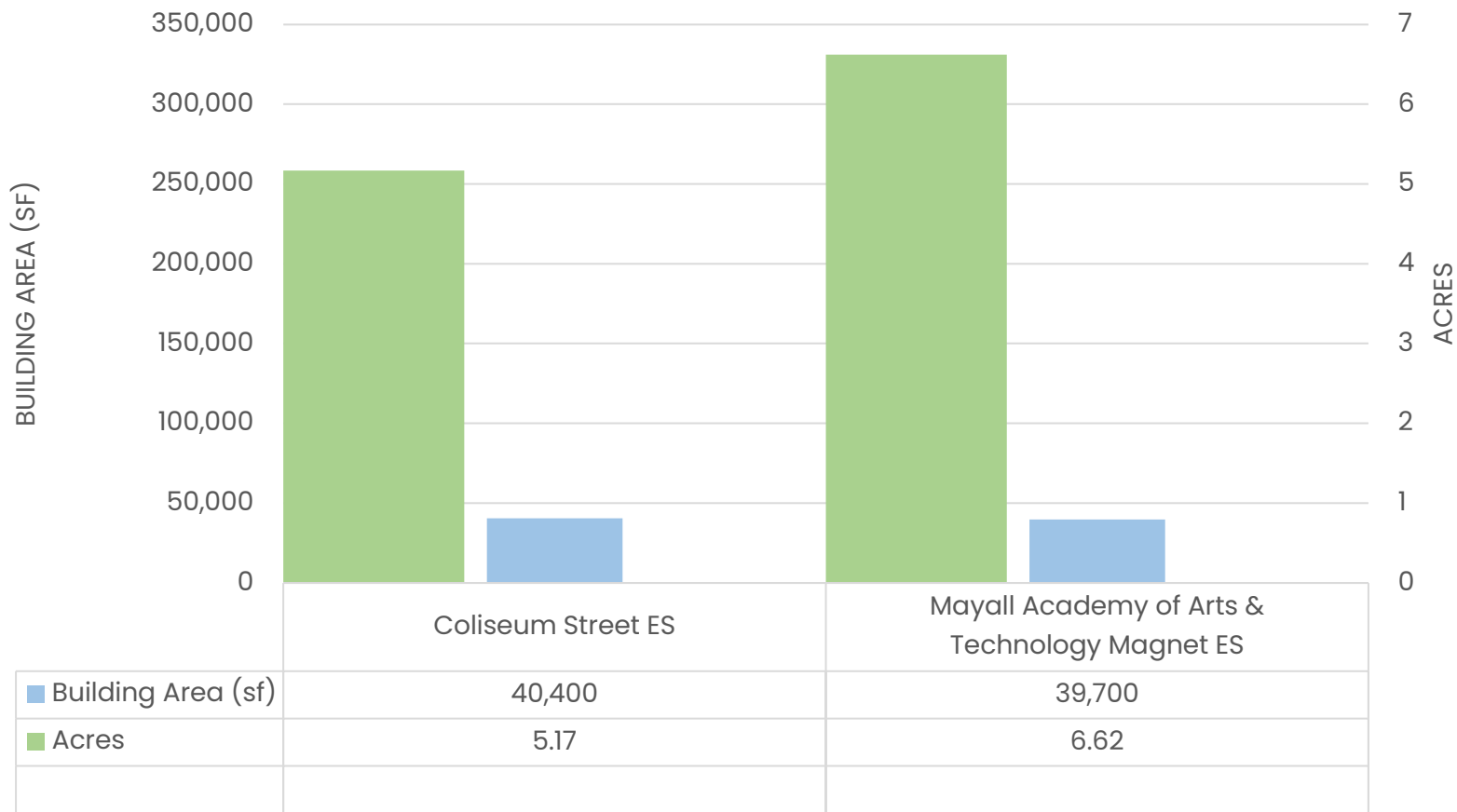
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Category Overview

School	Project Budget	Category
Coliseum Street ES	\$7,481,198	2
Mayall Academy of Art & Technology Magnet ES	\$6,335,652	2
TOTAL	\$13,816,850	

Building Area and Acres



Schools/Programs*:	Coliseum Street ES	Mayall Academy of Arts & Technology Magnet ES
Building Dates:	1947-2013	1953-1998
Schools/Programs*:	2	1
Student Enrollment*:	220	470
Budget:	\$ 7,481,198	\$ 6,335,652
* Source: E-CAR Reports 2023-24		

Student Eligibility by Program at Two Schools¹⁰⁶

Disability Category	Coliseum Street ES	Mayall Academy of Arts & Technology Magnet ES
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Emotional Disturbance (ED)	0	0
Hard of Hearing (HH)	0	<11
Intellectual Disability (ID)	<11	0
Multiple Disabilities – Hearing (MDH)	0	0
Multiple Disabilities – Orthopedic (MDO)	0	0
Multiple Disabilities – Vision (MDV)	0	0
Orthopedic Impairment (OI)	0	0
Other Health Impairment (OHI)	0	<11
Specific Learning Disability (SLD)	<11	11
Speech or Language Impairment (SLI)	12	<11
Visual Impairment (VI)	0	<11
Grand Total	58	37

To ensure confidentiality of individual student results and compliance with Los Angeles Unified policy and State guidelines, data is suppressed if the number of students included in calculations is less than 11.

General Scope:

Accessibility enhancements in nine buildings.

Scope Includes:

31 Paths of Travel
6 Restrooms
4 Drinking Fountains
3 Concrete Ramps
3 Metal Ramps
1 New Stage Lift
Other accessibility upgrades as required

Project Budget: \$7,481,198

- Site & Environmental 4%
- Plans 11%
- Construction 71%
- Management 8%
- Other/Reserve 6%

Project Schedule:

Construction Start: Q3-2027
Construction Completion: Q1-2029



Mayall Academy of Arts & Technology Magnet ES

General Scope:

Accessibility enhancements in three buildings.

Scope Includes:

15 Paths of Travel
6 Restrooms
4 Drinking Fountains
1 Concrete Ramp
2 Metal Ramps
3 Assembly Seating Areas
1 Playground Matting Area
Other accessibility upgrades as required

Project Budget: \$6,335,652

- Site & Environmental 4%
- Plans 11%
- Construction 71%
- Management 8%
- Other/Reserve 6%

Project Schedule:

Construction Start: Q3-2027
Construction Completion: Q1-2029



Questions ?